



U.S. Department
of Transportation

Research and
Special Programs
Administration

JAN 28 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9881
(SECOND REVISION)

EXPIRATION DATE: December 31, 2000

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: GE Reuter-Stokes
Twinsburg, OH
2. PURPOSE AND LIMITATIONS:
 - a. This exemption authorizes the manufacture, mark, sale and use of the non-DOT specification packaging described in paragraph 7 below, for the transportation in commerce of the material authorized by this exemption. This exemption provides no relief from any Hazardous Materials Regulation other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.302 in that a non-DOT specification packaging is authorized, and § 175.3.
5. BASIS: This exemption is based on the application of GE Reuter-Stokes dated December 15, 1998, submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Material Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Argon, compressed	2.2	UN1006	n/a

7. SAFETY CONTROL MEASURES: Packagings prescribed are non-DOT specification, metal, single trip, inside containers, described as hermetically sealed electron tube radiation sensors. The radiation sensors have diameters of approximately 5 inches, volumes of 123 cubic inches water capacity, and design (operating) pressures of 171.3 psig. Each radiation sensor is designed and constructed in accordance with GE Reuter-Stokes Technical Specification Number ER-Q-0050-7 dated November 9, 1987 on file with the Office of Hazardous Materials Exemptions and Approvals. The radiation sensor must be shipped in a strong outside packaging capable of withstanding a minimum drop test of six feet without breakage of the radiation sensor or rupture of the outside packaging. The design burst pressure of the radiation sensor must be at least 2.5 times the design pressure.

8. SPECIAL PROVISIONS:

- a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this exemption for the transportation of the hazardous material specified in paragraph 6, only in conformance with the terms of this exemption.
- b. A person who is not a holder of this exemption, but receives a package covered by this exemption, may reoffer it for transportation provided no modifications or changes are made to the package and it is offered for transportation in conformance with this exemption and the HMR.
- c. If re-packaged, the packagings used to ship larger equipment containing radiation sensors covered by this exemption must be strong outside packagings providing equivalent protection for the devices as specified in paragraph 7 above.
- d. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

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- e. Each packaging manufactured under the authority of this exemption must be marked with a registration symbol designated by the Office of Hazardous Materials Exemptions and Approvals for a specific manufacturing facility.
- f. A current copy of this exemption must be maintained at each facility where the package is manufactured under this exemption. It must be made available to a DOT representative upon request.
- g. Except when offered for transportation by air:
 - 1. Packages covered by this exemption are excepted from the labeling requirements of Subpart E of Part 172.
 - 2. Shipments are not subject to the placarding requirements of Subpart F of Part 172.
- 9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only, and passenger-carrying aircraft.
- 10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel and aircraft used to transport packages covered by this exemption. The shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.
- 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.
 - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

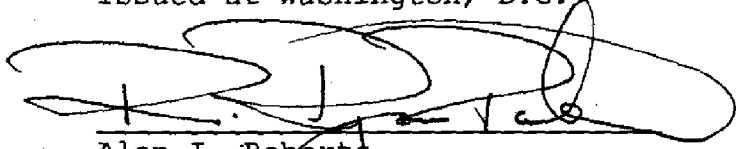
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

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12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued at Washington, D.C.


for Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

1/28/99
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

Dist: FHWA, FAA, FRA, USCG
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